

CALIFORNIA REGIONAL WATER QUALITY CONTROL BOARD
CENTRAL VALLEY REGION

ORDER NO. 95-042

WASTE DISCHARGE REQUIREMENTS
FOR
BADGER HILL ASSOCIATION
A CALIFORNIA NONPROFIT MUTUAL BENEFIT CORPORATION
SEPTIC TANK MANAGEMENT PROGRAM
TULARE COUNTY

The California Regional Water Quality Control Board, Central Valley Region, (hereafter Board) finds that:

1. Waste Discharge Requirements Order No. 79-23, adopted by the Board on 26 January 1979, prescribes requirements for Badger Hill Development for a discharge of domestic wastewater from individual Badger Hill residential septic tanks to leachfield systems.
2. The developer, Gill Brothers Feed Yard, Inc., planned to develop 1,773 acres into one-acre residential lots at the crown of Badger Hill. However, the development was limited to 133 one-acre lots on the crest of the Hill because on-site sewage disposal investigations indicated that the hillsides were composed of low permeability soils. The remaining undeveloped area of 1,640 acres is in permanent open space used as grazing land under common ownership of the lot owners. About 60 houses have been built.
3. Domestic wastewater is initially treated by individual on-site septic tanks. Effluent is primarily conveyed to a leachfield on each lot. A few leachlines are on communal property of the Badger Hill Association because conditions on the lots will not provide adequate disposal. The leachlines are about 70 feet long, 5 feet wide, and 5 feet beneath the ground surface. Each leachfield constructed thus far has five leachlines and reportedly a total discharge capacity of 1,200 gallons per day (gpd) with sections used alternately to allow used sections to rest. Each septic tank and leachfield are owned by the individual lot owner.
4. On purchasing a lot of Badger Hill, an individual entitles and obligates himself as a member of Badger Hill Association. A member of the association will be controlled by governing instruments which generally include a Declaration of Restrictions (CC&Rs), Articles of Incorporation (or association) and bylaws. Badger Hill Association (hereafter Discharger) is a California nonprofit mutual benefit corporation. The CC&Rs state that the association has a "power and authority to contract and pay for, or otherwise provide for the maintenance, restoration and repair of individual sewage disposal systems". Maintenance of the individual waste systems is now provided by the Discharger, pursuant to conditions of approval by the Tulare County Board of Supervisors. The Badger Hill Association requires each septic system owner to switch to an alternate leachline every six months.
5. Each family discharges an average of 550 gpd of wastewater. The current total of all discharges is about 33,000 gpd.

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6. Order No. 79-23 does not reflect current ownership or responsibilities for monitoring and maintenance and is neither adequate nor consistent with current plans and policies of the Board.
7. Badger Hill rises from the valley floor at about elevation 480 feet above mean sea level and crests at elevation 1,150 feet above mean sea level. The residential area, septic tanks and leaching systems are at the top of the hill, in a portion of Section 31, T18S, R27E, and a portion of Section 6, T19S, R27E, MDB&M, with surface water drainage to Yokohl Creek, as shown in Attachment A, which is attached hereto and part of this Order by reference. The site lies within the Kaweah Hydrologic Area (No.558.10), as depicted on interagency hydrologic maps prepared by the Department of Water Resources in August 1986.
8. The Board adopted a Water Quality Control Plan for the Tulare Lake Basin (5D, hereafter Basin Plan), which contains water quality objectives for all waters of the Basin. These requirements implement the Basin Plan.
9. Yokohl Creek is an east side stream as identified in the Basin Plan. The designated beneficial uses of east side streams include municipal and agricultural supply; water contact recreation; non-contact water recreation; warm fresh water habitat; cold fresh water habitat; wildlife habitat; fresh water replenishment; and ground water recharge.
10. The beneficial uses of local ground water are domestic, industrial, and agricultural supply.
11. A ground water report submitted by Gill Brothers Feed Yard, Inc., states that Badger Hill consists of metamorphic rock which is essentially non-waterbearing. Water supply is ground water from Badger Hill Mutual Water Company and is of good quality with electrical conductivity of 480 μ mhos/cm.
12. Soils in the leachfield area consist of sandy silt and silt with some rocks. Percolation tests performed at the crest of Badger Hill indicate an average percolation rate of 7.5 minutes per inch. The soils report submitted by the Gill Brothers Feed Yard, Inc. indicates that several lots may have insufficient depth of soils for leaching systems. Those lots require engineered disposal systems that at least meet the "Minimum Criteria for Septic Tank and Leaching Systems" specified in Basin Plan. The Gill Brother Feed Yard, Inc. found that soil conditions were inadequate for installation of subterranean disposal systems on certain individual lots. The multiple approvals granted by Tulare County allow systems to be on Association property owned in common by all lot owners. As regulation of individual sewage disposal system has been waived by the Board to the County, the disposal facilities' design, location and size are regulated by Tulare County.
13. The action to update waste discharge requirements for this existing development is exempt from the provisions of the California Environmental Quality Act (CEQA), in accordance with Title 14, California Code of Regulations (CCR), Section 15301.

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14. The Board has notified the Discharger and interested agencies and persons of its intent to prescribe waste discharge requirements for this discharge and has provided them with an opportunity for a public hearing and an opportunity to submit their written views and recommendations.
15. The Board, in a public meeting, heard and considered all comments pertaining to the discharge.

IT IS HEREBY ORDERED that Order No. 79-23 is rescinded and Badger Hill Association, its agents, successors, and assigns, in order to meet the provisions contained in Division 7 of the California Water Code and regulations adopted thereunder, shall comply with the following:

A. Discharge Prohibitions:

1. Discharge of wastes to surface waters or surface water drainage courses is prohibited.
2. Bypass or overflow of septic tanks is prohibited.
3. Discharge of other than domestic sewage, such as waste classified as 'hazardous' or 'designated', as defined in Sections 2521(a) and 2522(a) of Title 23, CCR, Section 2510, et seq., (hereafter Chapter 15), is prohibited.

B. Discharge Specifications:

1. The discharge of wastewater shall be maintained underground, and discharges shall be kept on property approved by the County of Tulare at all times.

C. Solids Disposal Specifications:

1. Collected septage, sludge, scum and other solids or pumpings removed from septic tanks shall be disposed of in a manner that is consistent with Chapter 15 and approved by the Executive Officer.

D. Provisions:

1. Discharge shall only occur from individual sewage disposal systems that comply with the Basin Plan and that have been designed and are operated as approved by Tulare County.
2. Septic tanks shall be inspected on a regular basis, to measure build-up of solids and scum, and shall be pumped a minimum of once every five years and prior to any danger of carry-over of solids that may damage the leachfield.

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3. When the Discharger determines that an individual leachfield has failed, or is in danger of failing, it shall take appropriate action to assure the system is repaired to the satisfaction of the Tulare County Environmental Health Director as soon as feasible.
4. Measuring and monitoring devices used to determine the need for repair or maintenance shall be properly maintained, and promptly replaced or repaired as necessary.
5. The Discharger shall comply with Monitoring and Reporting Program No. 95-042 , which is part of this Order, and any revisions thereto as ordered by the Executive Officer.
6. The Discharger shall comply with the "Standard Provisions and Reporting Requirements for Waste Discharge Requirements," dated 1 March 1991, which are attached hereto and by reference a part of this Order. This attachment and its individual paragraphs are commonly referenced as "Standard Provision(s)."
7. In the event of any change in control of the waste discharge systems described herein, the Discharger shall notify the succeeding maintenance entity of the existence of this Order by letter, a copy of which shall be immediately forwarded to this office.

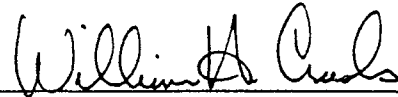
To assume operation under this Order, the succeeding entity must first apply in writing to the Executive Officer requesting transfer of the Order. The request must contain the requesting entity's full legal name, legal authority relative to ability to effectively manage this program, the State of incorporation if a corporation, the name and address and telephone number of the persons responsible for contact with the Board, and a statement. The statement shall comply with the signatory paragraph of Standard Provision B.3 and state that the new operator assumes full responsibility for compliance with this Order. Failure to submit the request shall be considered a discharge without requirements, a violation of the California Water Code. Transfer shall be approved or disapproved by the Executive Officer.

8. The Discharger must comply with all conditions of this Order, including timely submittal of technical and monitoring reports as directed by the Executive Officer. Violations may result in enforcement action, including Regional Board or court orders requiring corrective action or imposing civil monetary liability, or in revision or rescission of this Order.
9. A copy of this Order shall be kept by the Badger Hill Association for reference by maintenance personnel. Key maintenance personnel shall be familiar with its contents.
10. The Board will review this Order periodically and will revise requirements when necessary.

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I, WILLIAM H. CROOKS, Executive Officer, do hereby certify the foregoing is a full, true, and correct copy of an Order adopted by the California Regional Water Quality Control Board, Central Valley Region, on 24 February 1995.



WILLIAM H. CROOKS, Executive Officer

YP:cjs: 2/24/95

CALIFORNIA REGIONAL WATER QUALITY CONTROL BOARD
CENTRAL VALLEY REGION

MONITORING AND REPORTING PROGRAM NO. 95-042

FOR
BADGER HILL ASSOCIATION
A CALIFORNIA NONPROFIT MUTUAL BENEFIT CORPORATION
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WASTEWATER SYSTEM MONITORING

The dates and nature of inspections and maintenance shall be described in monitoring reports, including number of tanks pumped out during the six-month period.

The leachfields shall be inspected semi-annually. The presence or absence of surfacing effluent shall be noted.

REPORTING

Monitoring reports shall summarize all monitoring and be submitted semi-annually. The reports shall include flow volume any surfacing of effluent (by lot number), and number of the tanks pumped over the last six months, and shall be submitted to the Board by **20 January** and **20 July** of each year.

If the Discharger monitors locations designated herein more frequently than is required by this Order, the results of such monitoring shall be included in the discharge monitoring report.

The Discharger may also be requested to submit an annual report to the Board with tabular and graphical summaries of the monitoring data obtained during the previous year. Any such request shall be made in writing. The report shall discuss the corrective actions taken and planned to bring the discharge into full compliance with the waste discharge requirements.

By **31 January of each year**, the Discharger shall submit a written report to the Executive Officer containing the following:

- a. The names and telephone numbers of persons to contact in the Association regarding the septic tanks and leaching systems for emergency and routine situations.
- b. A statement whether the current operation and maintenance manual, and contingency plan, reflect the septic tank management program, and the dates when these documents were last reviewed for adequacy.

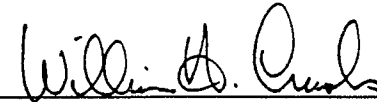
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All reports submitted in response to this Order shall comply with the signatory requirements in Standard Provision B.3.

The Discharger shall implement the above monitoring program on the first day of the month following adoption of this Order.

Ordered by:

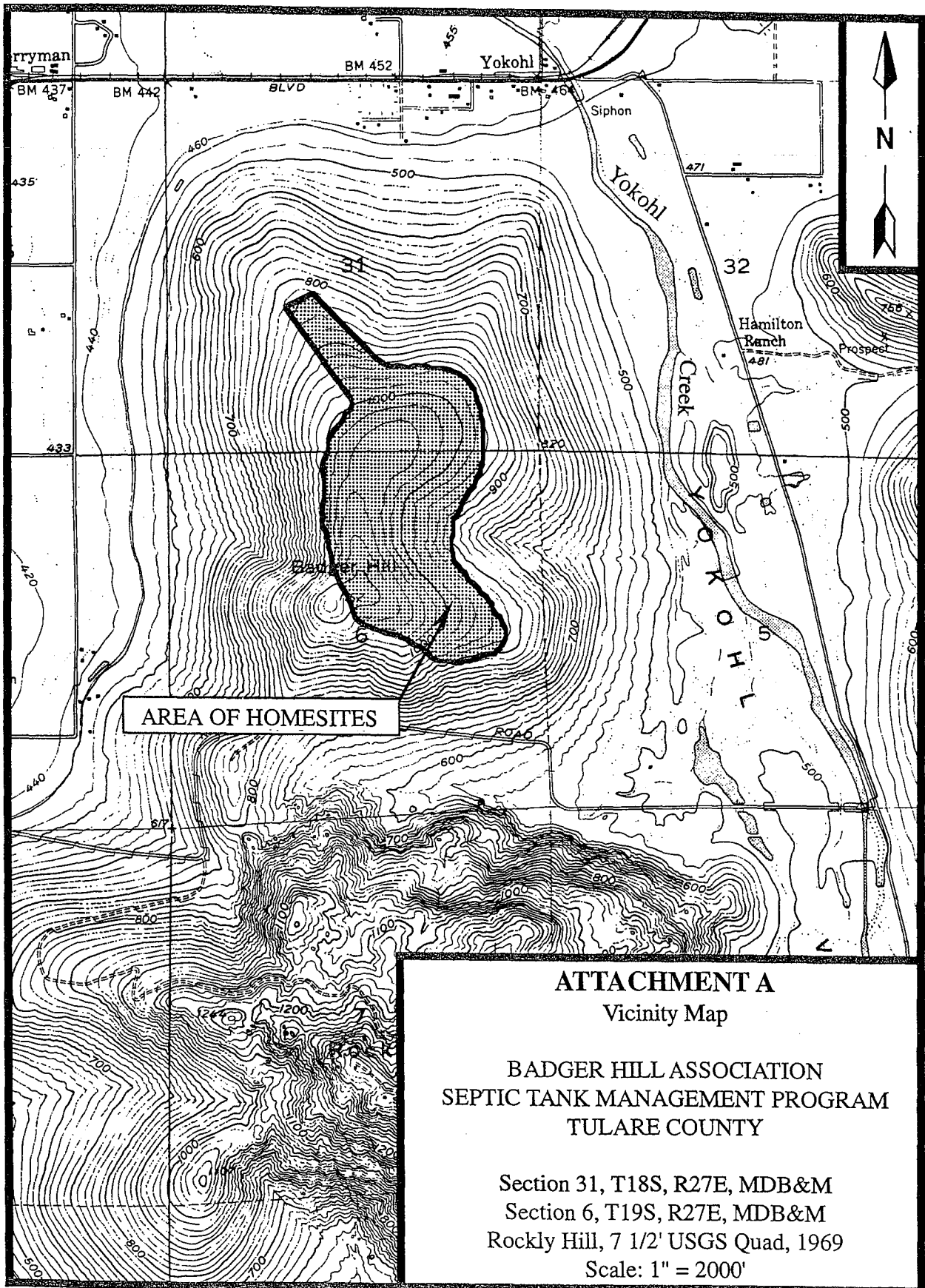


WILLIAM H. CROOKS, Executive Officer

24 February 1995

(Date)

YP:cjs: 2/24/95



INFORMATION SHEET

BADGER HILL ASSOCIATION
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Badger Hill Association monitors and maintains several individual wastewater treatment and disposal systems for Badger Hill residents at the crown of Badger Hill east of Exeter. Badger Hill rises from the valley floor at about elevation 480 feet above mean sea level with the crest at elevation 1,150 feet above mean sea level. The surface water drainage is to Yokohl Creek.

Gill Brothers Feed Yard, Inc., planned to develop 1,773 acres into one-acre residential lots at the crown of Badger Hill. However, the development has been limited to 133 one-acre lots on the crest of the hill because sewage disposal investigations indicated that the hillsides are composed of low permeability soils. The remaining undeveloped area of 1,640 acres is in permanent open space used as grazing land under common ownership of the lot owners. About 60 homes have been built and occupied.

Domestic wastewater is initially treated by individual septic tanks. Effluent is primarily conveyed to a leachfield on each lot. Some leachlines are on Badger Hill Association property because conditions on the lots will not provide adequate disposal. The leachlines are about 70 feet long, 5 feet wide, and 5 feet beneath the ground surface. Each leachfield has five leachlines and a discharge capacity of 1,200 gallons per day (gpd).

Each family discharges an average of 550 gpd of wastewater. The current total discharge is about 33,000 gpd.

Maintenance of individual waste systems is provided by the property owners association, as specified in the conditions of approval of the subdivision by the Tulare County Board of Supervisors. Badger Hill Association is a California nonprofit mutual benefit corporation with power and authority to contract and pay for, or otherwise provide for the maintenance, restoration and repair of individual sewage disposal systems.

Yokohl Creek is an east side stream, as identified in the Basin Plan. Designated beneficial uses of east side streams include municipal and agricultural supply; water contact recreation; non-contact water recreation; warm fresh water habitat; cold fresh water habitat; wildlife habitat; fresh water replenishment; and ground water recharge.

The beneficial uses of local ground water are domestic, industrial, and agricultural supply.

A ground water report submitted by the developer (Gill Brothers Feed Yard, Inc.) states that Badger Hill consists of metamorphic rock which is essentially non-waterbearing. Water supply is ground water from Badger Hill Mutual Water Company and is of good quality with electrical conductivity of 480 μ mhos/cm.

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Soils in the leachfield area consist of sandy silt and silt with some rocks. Percolation tests performed at the crest the hill indicate an average percolation rate of 7.5 minutes per inch. The soils report submitted by the developer indicates that several lots may have insufficient depth of soils for leaching systems. Those lots require engineer designed disposal systems to meet the "Minimum Criteria for Septic Tank and Leaching Systems" described in Basin Plan. The disposal facilities' design, location, and size are regulated by Tulare County.

The action to update waste discharge requirements for this facility is exempt from the provisions of the California Environmental Quality Act (CEQA) in accordance with Title 14, California Code of Regulations (CCR), Section 15301.